



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 19TH DAY OF DECEMBER, 2025

PRESENT

THE HON'BLE MR. JUSTICE D K SINGH

AND

THE HON'BLE MS. JUSTICE TARA VITASTA GANJU

WRIT PETITION NO. 2485 OF 2024 (GM-CON)

BETWEEN:

SRI. MAHALINGAPPA
S/O SHIVAPPA KARIGARA,
AGED ABOUT 52 YEARS,
OCC: AGRICULTURE,
R/O MULUGUNDA TALUK,
GADAG DISTRICT-582 117.

...PETITIONER

(BY SMT. ARUNA BHAT., ADVOCATE FOR
SRI. AJAY.T., ADVOCATE)

AND:

1. SRI VADIRAJA
S/O VISHNU RAIKARA
AGED ABOUT 52 YEARS
OCCUPATION: BANKING
PROPRIETOR
SRI. KAMAKSHI FINANCE (R)
MULGUNDA TALUK
GADAG DISTRICT 582 117
2. THE REGISTRAR
THE KARNATAKA STATE CONSUMER
DISPUTES REDRESSAL COMMISSION
BANGLAORE (ADDL. BENCH),
BASAVA BHAVAN
BENGALURU 5260 001



...RESPONDENTS

(BY SRI. S V PRAKASH.,ADVOCATE FOR R1;
SRI. G S ARUNA, HCGP FOR R2)

THIS WP IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA, PRAYING TO (A) WRIT IN THE NATURE OF CERTIORARI TO QUASH THE IMPUGNED ORDER DATED 10/04/2023 PASSED BY THE HONBLE KARNATAKA STATE CONSUMER DISPUTES REDRESSAL COMMISSION, BANGALORE (ADDITIONAL BENCH) RESPONDENT NO.2 IN APPEAL NO.226/2021 AS PER ANNEXURE-A TO THIS WRIT PETITION AND THEREBY CONFIRMING THE ORDER DATED 10/06/2020 PASSED BY THE HONBLE DISTRICT CONSUMER DISPUTES REDRESSAL FORUM, GADAG IN COMPLAINT NO.28/2018 AND THEREBY ALLOW THE COMPLAINT FILED BY THE PETITIONER AND ETC.,

THIS PETITION, COMING ON FOR PRELIMINARY HEARING IN 'B' GROUP, THIS DAY, ORDER WAS MADE THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE D K SINGH
and
HON'BLE MS. JUSTICE TARA VITASTA GANJU

ORAL ORDER

(PER: HON'BLE MR. JUSTICE D K SINGH)

Heard learned counsel for the petitioner and respondent.

2. The petition has been filed against the order dated 10.04.2023 passed by the Karnataka State Consumer Disputes Redressal Commission, Bangalore (Additional Bench) in Appeal No. 226/2021 preferred by the respondent against the order dated 10.06.2000 passed by the District Consumer Disputes



Redressal Commission, Gadag in Complaint No.28/2018 filed by the petitioner herein. The appeal was filed during the Pandemic COVID-19. The Tribunal has decided the appeal *ex- parte*. There was a delay of 231 days in filing the appeal. The Tribunal has allowed the application for condonation of delay and also allowed the appeal with costs of ₹ 1,000 (Rupees One Thousand only).

3. We have considered the submissions.

4. Learned counsel for the respondent submits that the impugned judgment may be set aside and the matter may be remitted back to the State Commission for giving a fresh consideration on merit.

5. Considering the aforesaid submissions of the learned counsel for the respondent, we set aside the impugned order dated 10.04.2023 passed by the Karnataka State Consumer Disputes Redressal Commission in Appeal No.226/2021 and restore the appeal on the file of the State Commission for deciding afresh after giving opportunity to the parties. We further request the State Commission to decide



the appeal afresh expeditiously, preferably within a period of four months.

6. Any Observation in the earlier order dated 10.04.2023 on merit will not come in the way in deciding the appeal afresh in accordance with law.

**(D K SINGH)
JUDGE**

**(TARA VITASTA GANJU)
JUDGE**

YKL
List No.: 1 Sl No.: 9